

the document with respect to the **accuracy of the facts** it contained. Such statements relate to the probative value of a document.

In T 71/99 the minutes of the proceedings as taken by the opposition division did not provide a full account of the conduct of the oral proceedings. To show the board what had actually happened, the respondent submitted part of a copy of a **report of the opposition proceedings** which had been dictated by his representative in the course of those proceedings. The appellant argued that this document should not be admitted, albeit without disputing the facts set out in it. Since the submitted part of the report was significantly more precise and not difficult to understand, the board saw no reason to disregard the evidence. In R 3/08 the Enlarged Board, having taken private minutes into account, considered that there was no indication that the petitioner had raised any objection.

On **minutes** of oral proceedings as evidence of the course of the proceedings, see also chapters III.C.7.10., V.B.3.6.4. and R 7/11. See also in this chapter: T 361/00 (minutes not contested), and T 2301/12, in which, the accuracy of the minutes of the oral proceedings having never been challenged, the board started from the position that they represented a faithful account of events. Similarly, in R 6/17 the petitioner had neither objected to nor requested a correction of the minutes.

In various cases concerning prior use, **photographs** were submitted as evidence (see e.g. T 833/99 (photos considered too unclear); T 1410/14; T 564/12; T 453/02 (photos as annexes to affidavits); T 1647/15; T 1127/97; T 544/14 and T 1604/16).

T 523/14 concerned an advertising newsletter as an alleged prior publication. Of the evidence produced by the opponents, the appellant (patent proprietor) argued that D61 – a **screenshot** of Microsoft Outlook documenting the forwarding of the email – might be a forged document. However, the appellant did not indicate, and the board could not find, any inconsistency or discrepancy in D61 which could suggest that this document was a forgery. The mere fact that it was a screenshot of Microsoft Outlook was insufficient to warrant the conclusion that it had been forged.

Where there is no evidence of forgery, it is not necessary to submit the originals of instruments of transfer. Failure to submit originals is not sufficient by itself to raise reasonable doubt as to the validity of the transfer (T 2466/13, which concerned a transfer of priority right).

The board in T 41/19 dealt, among other things, with the probative value of an email in light of a witness statement as to an alleged novelty-destroying prior use (it was considered to be weak in the context of the case in hand).

In T 518/10 (concerning a transfer of opponent status), opponent 2 had filed a copy of an extract from the Norwegian companies register from which it was clear that its name had changed following a merger. The board considered this evidence sufficient to demonstrate who was opponent 2's universal successor in law. See also T 347/15 (two extracts from the commercial register).

In T.2220/14 the opponent submitted a decision of a US District Court in relation to the appellant's US patent. Ultimately, pursuant to Art. 13(1) and (3) RPBA 2007, the board decided not to admit this document into the proceedings. It recalled the relationship between national decisions and procedures before the boards of appeal (point 16 of the Reasons) and considered the document to be irrelevant to the issues before it.

In T.301/94 a report by a "huissier de justice" (court bailiff) concerning champagne bottles had been submitted as evidence of alleged prior use. The evidential value of such official reports drawn up by a "huissier de justice" was no longer questioned at the appeal stage (see also T.838/92).

In T.801/98 lock designs had been deposited, under seal, with a court bailiff and submitted by the appellant during the oral proceedings before the board.

In T.1332/12 the respondent (opponent) filed a copy of Japanese application D7 as evidence of the prior art and a JPO **machine translation** into English (D7T). The appellant (patent proprietor) filed later D7JPO, in its view a more accurate machine translation of D7. The board pointed out that there was nothing in the EPC to prevent a party from filing a **corrected translation of a document filed as evidence**, even if the evidence and/or translation was filed by the other party to the proceedings. This also applied if the document was a patent application. See chapter III.F.5. "Translations".

For **internet publications**, see in particular T.286/10 and T.2227/11, reported in this chapter.

3. Taking of evidence

Mirroring the holding of oral proceedings by videoconference, R.117 and 118 EPC were amended with effect from 1 January 2021 to allow for means of taking evidence by videoconference (see OJ 2020, A132).

Art. 117 EPC entitled "Means and taking of evidence" is applicable before all EPO departments, including the Receiving Section, examining divisions, opposition divisions, the Legal Division and the boards of appeal.

3.1. Relevance of the evidence

3.1.1 Basic principles

The EPO departments must ascertain the **relevance of evidence submitted to them** before deciding whether to admit or reject it. EPO departments do indeed have some **discretion** in admitting evidence offered, for example where (i) it is no longer needed because the fact at issue is **not contested** by the other party, (ii) where the decision will in any case go in favour of the party offering it, (iii) where it is submitted very late in the proceedings and is considered immaterial, or (iv) where for some other reason it cannot affect the outcome (e.g. evidence offered in an inadmissibly late-filed opposition) (T.142/97, OJ 2000, 358).

In T.798/93 (OJ 1997, 363) the board observed that the only specific means requested was a sworn statement in writing but, in the absence of any legitimate doubt as to the opponent's identity, the board considered that this was neither useful nor necessary.

All appropriate offers of evidence made by the parties should be taken up. As a rule, it cannot be considered to be in keeping with good procedural practice for an opposition division not to take up an opportunity to hear a witness or party in evidence (T.329/02; see T.860/01 on the extent of the discretionary power of the first-instance department).

All the cases cited below relate to requests to hear witnesses. The sub-headings are aimed at guiding readers to more specific aspects. Since the reasons for a decision may touch on several aspects, the abstracts may also deal with points not alluded to in the heading.

3.1.2 Offering evidence – effect on the outcome of the dispute

See the introduction above with reference to T.329/02 and T.860/01.

According to T.716/06, it is true that where **oral evidence of a witness** is requested by a party the competent EPO department should grant this request only if it considers this oral evidence necessary, i.e. when it is required to clarify matters that are decisive for the decision to be taken. If a request is made by an opponent to hear a witness on an alleged public prior use and on the disclosure of a certain feature by this prior use, the competent department of the EPO must as a rule grant this request before deciding that the alleged public prior use is neither established nor a novelty-destroying part of the state of the art because the feature in question is not found to be disclosed therein. In T.2003/08 of 31 October 2012 the board – in contrast to the opposition division – considered it appropriate to hear the witnesses because their testimony **could affect the outcome** of the proceedings.

In T.246/17 the opposition division had declined to hear the witnesses offered in relation to prior use and considered the public prior use to be adequately proven by the documentary evidence. However, the board came to the conclusion that it could not be ruled out that hearing the witnesses, alongside evaluating the documentary evidence, could have led to a different assessment of novelty and inventive step and thus to a different outcome. The disclosures of documents O1 (manual) and O2 (brochure) left open whether certain features were present in the instrument described, but the instrument had actually been made and sold and might itself have disclosed them even though O1 and O2 did not, and this was a matter which witness testimony could resolve. Not hearing the witnesses was therefore a fundamental procedural violation that justified setting the decision aside (see e.g. T.716/06, T.1363/14 and T.314/18).

In T.1100/07 (alleged prior use, sale of a vehicle with a given feature), the department of first instance had refused to hear two witnesses. The board held that it had been right to refuse to hear one of them, as he would merely have confirmed what he had said in his written statement about documents that anyway spoke for themselves and hearing him would have had no impact on the final decision. It should, however, have heard the other witness. It was true that the request that he be heard had been filed late and that granting

it would have meant adjourning the oral proceedings, but the opposition division had based its final decision on a failure to establish the prior existence of a single given feature and the witness would allegedly have been able to give evidence on that very point. Thus, the refusal to hear him was wrong and might have affected the outcome of the decision.

In T 273/16, during the opposition proceedings the appellant-opponent had, on multiple occasions, requested that two witnesses be heard on the alleged prior use of a commercial dishwasher. The opposition division had opted not to invite the witnesses. Its decision appeared to be based primarily on the fact that no production or sale of the dishwasher had been demonstrated. Yet the opponent had offered the two witnesses in relation to that very issue. The decision not to hear the witnesses was therefore incorrect and might have influenced the outcome of the proceedings.

3.1.3 Taking evidence (hearing of a witness) deemed unnecessary

In T 361/00 the board explained in detail why, given the circumstances of the case before it, hearing the witness would be unnecessary because it would in no way affect the outcome of its decision. (In the same vein, see T 377/17 regarding witnesses offered for carrying out the furnished tests.)

As per T 41/19, an affidavit was one possible form of evidence and could therefore be taken into account as stand-alone evidence. This being the case, a written statement carried no less weight than hearing the author of the statement as a witness.

In T 1410/14 (prior use – train – test drive) the board remarked in particular that, since the witness whose hearing the opponent had requested would not have been able to testify as to the decisive material facts, such a hearing would serve no purpose.

3.1.4 Hearing the witness introduces new facts into the proceedings

In T 1231/11 the board refused the request to hear a witness in support of an allegation of prior use. The witness had been offered to confirm the contents of his statutory declaration, but the board concluded that since he had not made any written statement regarding the decisive issue, any information provided on this matter would amount to introducing new facts into the proceedings. In addition the board concluded that there had been no substantial procedural violation by the department of first instance since hearing the witness had not been considered relevant for the outcome of the case. The board found the circumstances to be different from those ruled on in three other cases, where the request to hear witnesses related to facts already on file: T 267/06 (essential details referred to in the affidavit); T 25/08 (hearing necessary in order to confirm what had been brought forward in writing); T 448/07 (need to clarify inconsistencies in a written statement).

3.1.5 Hearing the patent proprietor

In T 753/14 the opponent (appellant) requested that the board hear the proprietor of the patent in suit (respondent) under Art. 117(1)(a) EPC to clarify the scope of the disclosure

in another of its patents (A10), which the opponent had cited as novelty-destroying prior art. In other words, the proprietor was to be heard with a view to obtaining information that had not been specified in A10 but, in the opponent's eyes, had to be known to the proprietor. The board did not order the requested hearing; it considered it unnecessary as it would provide new information that had not been publicly available on the basis of A10 at the time of filing of the patent in suit.

3.1.6 Re-hearing a witness

In case T 30/12, as evidence adduced for proving the invoked public prior use in opposition proceedings, the appellant (opponent) relied upon the drawing A9 and the testimony of Mr H, made before the opposition division. As regards the request for a renewed hearing of the witness Mr H before the board, the board noted that the appellant did not request that the witness be heard again to supplement his testimony by corroborating facts but only to clarify the statements made before the opposition division. However, the statements made by the witness as to whether document A9 was handed over to a member of the public were clear and unambiguous. The request to **rehear** Mr H was eventually rejected by the board.

In T 544/14 re-hearing the witness was necessary. In view of the complication and the subsequent delay in the proceedings, the board decided first to clarify whether the alleged public prior use was novelty-destroying (without any doubt, no).

3.1.7 Example procedure for hearing a witness

Decision T 401/12 of 8 November 2017, in which the taking of evidence requested by both parties was considered necessary, is an example of an interlocutory decision ordering that evidence be taken by hearing witnesses at a future date (R 117 EPC) and dealing with the associated costs (R 122(1) EPC) and the language issue (R 4(3) EPC). The witnesses were given permission to bring any relevant documents. See also, in case T 738/04 the decision of 22 August 2008 ordering the hearing of a witness under R 117 EPC at the oral proceedings on 11 December 2008, at the end of which the final decision was taken. T 660/16 addresses the issue regarding the nature of a decision – in this case, before the opposition division – ordering the hearing of a witness (case-management measure), and the deposit of an advance payment.

3.2. Time frame for submitting evidence and ordering the taking of evidence

This section concerns when the parties should submit evidence and when the taking of evidence should be requested or ordered.

While it has been accepted in the jurisprudence of the boards of appeal that EPO departments have some discretion in admitting evidence, e.g. where the evidence is unnecessary or of no relevance (cf. T 142/97, OJ 2000, 358, point 2.2 of the Reasons), the **main legal basis for refusing the admission of evidence** is, as stated by the board in T 1698/08, the provisions dealing with the late filing of evidence (see Art. 114(2) EPC, R 116 EPC, Art. 12(4) and 13 RPBA 2007 (now RPBA 2020)). As regards the basic